

Civil Code section 3294. (*Delaney v. Baker* (1999) 20 Cal. 4th 23, 31.) The latter three categories involve intentional, willful, or conscious wrongdoing of a despicable or injurious nature. (*Ibid.*, citing Cal. Civ. Code §3294(c).) Recklessness refers to a subjective state of culpability greater than simple negligence, which has been described as a deliberate disregard of the high degree of probability that an injury will occur. (*Ibid.*) Recklessness, unlike negligence, involves more than inadvertence, incompetence, unskillfulness, or a failure to take precautions but rather rises to the level of a conscious choice of a course of action with knowledge of the serious danger to others involved in it. (*Id.* at 31-32.)

Defendant's motion quotes subdivision (b) of Civil Code, section 3294, and argues that Shields cannot be held liable for the acts of others. As discussed above, there are possible avenues of liability here that do not include such a vicarious liability finding. One such example is the participation of Shields in any understaffing policies that might have contributed to plaintiff's claims. Because the motion papers leave open disputes of fact related to this possibility, as mentioned above with respect to negligence, summary adjudication is denied.

D. Fourth Cause of Action: Negligent Infliction of Emotional Distress

Similar to the above discussion of negligence per se, there is no independent tort of negligent infliction of emotional distress; rather, the tort is negligence. (*Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 205.) For the reasons discussed above in regard to that cause of action, summary adjudication is denied with respect to Negligent Infliction of Emotional Distress.

E. Punitive Damages

While the Court maintains some degree of skepticism that plaintiff can show entitlement to punitive damages in light of the clear and convincing standard, such damages are warranted where a plaintiff shows liability under the Elder Abuse and Dependent Adult Civil Protection Act. Because the motion is denied with respect to that cause of action, the motion is also denied with respect to punitive damages.

17. 9:00 AM CASE NUMBER: MSC22-00247
CASE NAME: LAS MONTANAS MARKET VS. GUTIERREZ
***HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT**
FILED BY: LAS MONTANAS MARKET, INC
TENTATIVE RULING:

Notice to withdrawal Motion to Enforce Settlement Agreement has been filed on the case. This hearing has been **vacated**. No appearance is required on June 24, 2026.

18. 9:01 AM CASE NUMBER: C23-02575

CASE NAME: MATTHEW ANDRADE VS. CHRIS PETLOCK

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER PRODUCTION AND RESPONSES TO REQUESTS FOR PRODUCTION, SET TWO, AND FOR MONETARY SANCTIONS IN THE AMOUNT OF \$12,837.50**

FILED BY: ANDRADE, MATTHEW

TENTATIVE RULING:

Summary

Plaintiff's Motion to Compel Further Responses and Production of Documents Set Two and for Monetary Sanctions is vacated from this Court's calendar and is referred to a Discovery Referee as set forth herein. No appearance is required at the hearing on June 24, 2026.

Background

This is an employment action where Plaintiff Matthew Andrade, a custodial employee, claims that Defendants Chris Petlock and the Pleasant Hill Recreation and Park District ("Defendants") have conducted acts that constitute harassment, age discrimination, retaliation, and wrongful termination. On February 18, 2026, Plaintiff filed this discovery motion, which is the third motion pursued by Plaintiff. The Court finds that the tenor between the Parties and the relationship between Counsel is strained. This is the third discovery motion between the Parties, and the Court finds that Counsel are generally unable to meet and confer to arrive at resolutions informally.

Analysis

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil Discovery Practice (4th ed., CEB) § 15.32[C]. Additionally, "trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes." California Civil Discovery Practice (4th ed., CEB) § 15.38.6. Here, Counsel appeared to have met and conferred but are unable to resolve the discovery disputes before Plaintiff filed this third motion.

On motion of a party, stipulation of the parties, or sua sponte, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Code Civ. Proc. §§ 639(a)(5), (b)–(d); Cal. Rules of Court, rules 3.920–3.932; *Lu v. Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions, and the nature of the underlying legal issues

require the appointment of a Discovery Referee. Code Civ. Proc. § 639(a)(5) states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

The Court finds here that a discovery referee is necessary to hear and determine all disputes relevant to discovery. Again, this is the third motion filed by Plaintiff. These motions and oppositions filed to date consist of nearly 350 pages. Defendants are also pursuing a Motion for Summary Judgment. The filings alone in that Motion consist of several hundred pages. This Department manages a docket of 2700 cases, including complex, class action, PAGA, CEQA and construction defect cases. The civil law division of this Court manages 25,000 cases over six bench officers. The Court finds that Counsel are unable to effectively meet and confer to arrive at an informal resolution of the discovery disputes.

After considering the moving and opposition papers submitted by Counsel, and analyzing the applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and rulings.

Ruling

1. A Discovery Referee is appointed. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Code Civ. Proc. § 639.
2. The Discovery Referee shall hear all disputes relevant to discovery in this case and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear this Motion, and all discovery motions subsequently filed from this date forward. The hearing on this discovery motion is vacated from Department 16's calendar for June 24, 2026 and is referred for further hearing to the Discovery Referee.
3. By no later than June 29, 2026 the Parties are ordered to meet and confer pursuant to Code Civ. Proc. § 639(b) or (c) and shall submit a stipulation and proposed order listing the proposed Discovery Referee to the Court along with the proposed referee's curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by June 29, 2026, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, emailed to dept16@contracosta.courts.ca.gov by Wednesday, July 1, 2026. The Court will select one of the proposed referees by minute order. Code Civ. Proc. § 640(b). The Discovery Referee will be requested to sign the Judicial Council ADR-110 Form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 Form.
4. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
5. Plaintiff's Counsel are directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc., § 639, that conforms to this ruling, approved as to form by Defendants' Counsel, no later than five (5) days after the date of

this order. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.

6. The Clerk of Court shall vacate Plaintiff's discovery motion calendared for June 24, 2026. All future discovery disputes shall be referred to the Discovery Referee until further order of the Court.

7. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

8. No appearance is required at the hearing on June 24, 2026.

19. 9:01 AM CASE NUMBER: C25-00694

CASE NAME: ELIZABETH HILAMAN VS. MCDONALD'S USA, LLC

***HEARING ON MOTION FOR DISCOVERY AN ORDER QUASHING SUBPOENA, OR IN THE ALTERNATIVE, FOR PROTECTIVE ORDER**

FILED BY: MCDONALD'S USA, LLC

TENTATIVE RULING:

Summary

Defendant McDonald's Corporation filed a motion to quash two subpoenas on March 23, 2026, or, in the alternative, requested a protective order, and monetary sanctions in the amount of \$1,925.00. The motion is denied as **moot**.

The Court is inclined to grant, *sua sponte*, Plaintiff's attorney's fees and costs for having to prepare a response and briefing for an unnecessary motion that should have been removed from this Court's already impacted motion calendar. Defendant's counsel is ordered to appear by Zoom and to show cause as to why counsel failed to withdraw these Motions from the Court's calendar upon withdrawal of the subpoenas by Plaintiff.

Background

According to the filings submitted to the Court, on April 23, 2026 Plaintiff Elizabeth Hilaman withdrew the two subpoenas subject to Defendant's Motion to Quash. Plaintiff thereafter informed Defendant that the subpoenas had been withdrawn and requested that Defendant take its motion off calendar. Defendant did not withdraw this motion.

As the subpoenas were withdrawn prior to hearing, there is no subpoena remaining for this Court to quash and no basis for a protective order. Likewise, sanctions are unwarranted. Plaintiff voluntarily withdrew the subpoenas after Defendant raised objections, thereby providing Defendant the precise relief it requested during the meet-and-confer process. Defendant cannot demonstrate bad faith, oppression, or a lack of substantial justification as required under Code of Civil Procedure section 1987.2.

Ruling

1. Defendant's Motions are denied as **moot**.
2. Plaintiff's Counsel is ordered to prepare a brief declaration outlining fees and costs for having